

Court No. - 29

Case :- WRIT - C No. - 29037 of 2019

Petitioner :- Sharad Lahoti

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C., Amrendra Nath Singh (Senior Adv.), Krishna Agarawal

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard Sri Mayank Agrawal, learned counsel for the petitioner, learned Standing counsel and Sri Krishna Agrawal for respondent no. 5.

The petitioner apart from challenging the vires of Clause 4.3 (f) (v) of the U.P. Electricity Supply Code, 2005 as *ultra vires* to Section 56 of the Electricity Act, 2003 read with Section 4 (1) (d) of the Companies Act, 2013 is challenging the recovery citation dated 29.11.2016.

It is contended that though the above recovery citation is in the name of respondent no. 6 but since the petitioner was one of the Directors, the said recovery is being pressed against him in which connection officials are regularly visiting the petitioner and are harassing him.

A Similar Writ C No.11426 of 2016 (Brijesh Kumar Agarwal and another Vs. State of U.P., and 6 others) challenging the vires of the aforesaid Rules has already been entertained by this Court vide order dated 10.3.2016 and an interim order has been passed restraining the authorities from enforcing the recovery citation against the petitioner therein.

In view of the aforesaid facts and circumstances, we direct this petition to be listed after six weeks along with the record of the above writ petition and in the meantime parties would exchange the necessary affidavits.

Notice be issued to respondent no. 6.

Until further orders of this Court, it will be open for the respondents to press the recovery against respondent no. 6 but shall not recover any amount pursuant to the impugned recovery citation from the petitioner or his personal assets.

Order Date :- 19.9.2019

SKS

Court No. - 3

Case :- WRIT - C No. - 29037 of 2019

Petitioner :- Sharad Lahoti

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Ajay Singh, Amrendra Nath Singh
(Senior Adv.), C.S.C., Krishna Agarawal

Hon'ble Shekhar B. Saraf, J.

Hon'ble Praveen Kumar Giri, J.

On the request of learned counsel for the petitioner, list this case for hearing on 17.10.2025, in top ten cases.

Mr. Krishna Agarawal, learned counsel for the respondent no. 5 is present.

Order Date :- 1.8.2025

K.K. Maurya

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)